

2.	22CV1082	NAJAFPIR vs. VISIONARY REALTY GROUP INC et al
Motion to Vacate Sanctions Order		

Plaintiff requests the Court to vacate an award of sanctions made pursuant to Code of Civil Procedure § 127.8 based on Plaintiff's August 25, 2025, motion to lift a stay of proceedings related to the Court's Order to compel arbitration. The Opposition to Plaintiff's motion was filed on October 13, 2025, and the matter was heard on October 24, 2025. The Opposition requested the Court to impose sanctions pursuant to Code of Civil Procedure § 127.8.

Following the parties' arguments at the hearing, the Court made the following findings and conclusions:

Upon review of the pleadings and the statutory authority and in consideration of the arguments of the parties, the court finds that Plaintiff's motion was presented "primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation." (Code Civ. Pro., section 128.7, subd. (b)(1).) The court finds that there is no legal or factual basis to lift the stay and that the same exact issue was put before the court in 2023, after which it was fully briefed and argued with the court imposing the stay at the December 1, 2023 hearing after full consideration of the parties' arguments. The court finds that in effect Plaintiff's motion is an improper and untimely motion for reconsideration, filed approximately 20 months after the court's order and months before the case is set to go to arbitration. The court finds under the circumstances that Plaintiff's primary purpose in filing the motion is to harass or to cause unnecessary delay or to needlessly increase the costs of the litigation. The court finds that Plaintiff had a full opportunity to oppose the imposition of sanctions, yet the court finds that they remain appropriate.

October 24, 2025 Minute Order.

Plaintiff argues that the award was procedurally improper because the request for sanctions was not filed as a separate motion and did not provide Plaintiff with a 21 day "safe harbor" period to withdraw his motion to avoid the imposition of sanctions. Code of Civil Procedure § 127.8(c)(1), which provides:

(c) If, after notice and a reasonable opportunity to respond, the court determines that subdivision (b) has been violated, the court may, subject to the conditions stated below, impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.

(1) A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision

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(b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected. . . .

(2) On its own motion, the court may enter an order describing the specific conduct that appears to violate subdivision (b) and directing an attorney, law firm, or party to show cause why it has not violated subdivision (b), unless, within 21 days of service of the order to show cause, the challenged paper, claim, defense, contention, allegation, or denial is withdrawn or appropriately corrected.

The Court finds that the October 24, 2025, Minute Order did not meet the procedural requirements of Code of Civil Procedure § 127.8(c) and vacates the order without prejudice.

TENTATIVE RULING #2: THE COURT'S OCTOBER 24, 2025, MINUTE ORDER IS VACATED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.